



ANIMAL LAW HANDBOOK

FOR URBAN LOCAL BODIES

ANIMAL WELFARE BOARD OF INDIA

Ministry of Fisheries, Animal Husbandry and Dairying, Govt. of India
(Department of Animal Husbandry and Dairying)

राजीव रंजन सिंह उर्फ ललन सिंह
RAJIV RANJAN SINGH ALIAS LALAN SINGH



पंचायती राज मंत्री
और मत्स्यपालन, पशुपालन एवं डेयरी मंत्री
भारत सरकार
Minister of Panchayati Raj and
Minister of Fisheries, Animal Husbandry and Dairying
Government of India

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Message

I am pleased to know that the Animal Welfare Board of India is bringing out the *Animal Law Handbook for Urban Local Bodies*.

This handbook offers essential guidance for the effective management of stray animals in urban areas. It comprehensively covers the legal framework on key issues such as stray dog management, functioning of legal slaughterhouses, municipal market control, pet trade regulations, case property animal care, cattle pounds, dairy Gaushalas, farrier licensing, and cattle premises registration.

It also addresses legal aspects of preventing and controlling infectious and zoonotic diseases among animals, emphasizing the need for proactive measures.

I am confident that this handbook will be a valuable reference for urban local bodies, supporting them in implementing animal protection laws effectively. I commend the Board for its continued efforts in strengthening the legal framework for animal welfare and trust this guide will contribute to building a more humane and compassionate society.

(Rajiv Ranjan Singh)

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राज्य मंत्री
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Prof. S. P. Singh Baghel
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MESSAGE

The "*Animal Law Handbook for Urban Local Bodies*" will serve as an essential guide, providing effective animal management guidelines crucial for ensuring a harmonious coexistence between humans and animals in our urbanized localities. This handbook is designed to equip Urban Local Bodies with the knowledge and tools required to address the diverse challenges and opportunities related to animal management in urban areas, including the legal provisions necessary to take appropriate action on day-to-day issues concerning stray animals.

This comprehensive resource outlines best practices for managing both domestic and stray animals within urban localities. From public health considerations to animal welfare standards, our goal is to support Urban Local Bodies in developing policies and programs that enhance the quality of life for both human and animal inhabitants.

I understand that this handbook also addresses ethical considerations and legal frameworks and outlines strategies for managing animals to prevent the spread of zoonotic diseases and ensure public safety. It also highlights best practices for the humane management of stray animal populations, including spaying and neutering programs, and emphasizes the importance of encouraging community involvement and education on responsible pet ownership and animal welfare.

We are committed to fostering an environment where animals are treated with respect and compassion, while also addressing the needs and concerns of urban residents. By following the guidelines presented in this handbook, Urban Local Bodies can create safer, healthier, and more humane communities that safeguard the welfare of stray animals.

I hope this handbook will prove valuable in resolving many of the issues related to stray animals faced by Urban Local Bodies.


(Prof. S. P. Singh Baghel)

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SECRETARY



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Message

As urban populations continue to grow, the role of local bodies in managing urban spaces and resources becomes increasingly vital. One area that demands particular attention is animal management, an issue that touches on the welfare of both animals and humans. In cities, where the human-animal interface is often at its highest, it is crucial to strike a balance between compassion for animals and the safety, health, and comfort of communities.

This handbook “*Animal Law Handbook for Urban Local Bodies*” has been meticulously crafted to assist urban local bodies in developing effective, humane, and sustainable animal management practices. It serves as a comprehensive guide that not only covers essential laws and guidelines but also provides insights into practical, real-world solutions for challenges faced by local authorities.

Urban animals, whether they are companion animals, street dogs, or wildlife, play a significant role in our ecosystem and daily lives. Managing their welfare requires thoughtful policies that address their needs while considering the complexities of urban life. From stray animal management and vaccination campaigns to fostering community engagement and supporting animal rescue efforts, this handbook offers a holistic approach to addressing animal-related concerns.

I hope that this document will empower local bodies, municipal officers, and concerned citizens to create and sustain urban environments where both people and animals can thrive together in harmony. By applying the principles and practices outlined within these pages, we can ensure that urban spaces remain safe, inclusive, and compassionate for all living beings.


(Alka Upadhyaya)

डॉ. अभिजित मित्र
Dr. Abhijit Mitra
पशुपालन आयुक्त
Animal Husbandry Commissioner



सत्यमेव जयते



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Foreword

In an increasingly urbanized world, Urban Local Bodies (ULBs) face significant challenges in managing stray animals, which can pose threats to harmonious human-animal coexistence. Complaints regarding barking stray dogs, dog bites, infectious diseases, or injuries due to accidents require solutions that go beyond reactive measures. The growing interaction between humans and animals calls for not only responsive governance but also result-oriented strategies that prioritize both human and animal welfare.

The *Animal Law Handbook for Urban Local Bodies* is a timely and essential resource designed to equip ULBs with the necessary information and strategies to foster urban spaces where people and animals coexist safely and harmoniously in a compassionate, cruelty-free environment. It highlights the importance of structured programs such as Animal Birth Control (ABC), anti-rabies vaccination drives, and humane sheltering, while emphasizing the critical role of community engagement in fostering empathy and shared responsibility.

Importantly, this handbook does not view stray animals as a "problem" to be eradicated but as sentient beings deserving of dignity. It champions collaborative governance by encouraging partnerships between municipal agencies, veterinarians, animal welfare organizations, and residents.

The strategies outlined here are not merely about compliance with existing regulations; they represent a vision for proactive, ethical, and forward-looking practices. Ultimately, this handbook envisions cities that are not only habitable for humans but truly inclusive, ensuring that both animals and people can thrive together.

The need for effective animal management has never been more urgent. This handbook serves as more than a set of guidelines; it is a call to action for Urban Local Bodies to lead with empathy, resilience, and forward-thinking solutions—paving the way for sustainable, safe, and compassionate cities for all inhabitants, human and animal alike.

I extend my sincere gratitude to the experts, practitioners, and advocates whose insights have shaped this resource.

(Abhijit Mitra)



सत्यमेव जयते

डॉ. एस. के. दत्ता
Dr. S. K. Dutta
सचिव / Secretary



भारतीय जीव जन्तु कल्याण बोर्ड ANIMAL WELFARE BOARD OF INDIA

भारत सरकार

मत्स्यपालन, पशुपालन और डेयरी मंत्रालय

(पशुपालन और डेयरी विभाग)

Government of India

Ministry of Fisheries, Animal Husbandry and Dairying

(Department of Animal Husbandry and Dairying)



PREFACE

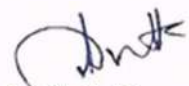
The geographical area of the whole world is changing due to the increasing population which is affecting the environment and ecology and thus the responsibility of the Urban local bodies have increased tremendously to manage both the human and animal settlements. The subject has drawn attention of the various Government bodies to control human conflict.

Urban animals, whether they are companion animals, street dogs, or wildlife, play a significant role in our ecosystem and daily lives. Managing their welfare requires thoughtful policies that address their needs while considering the complexities of urban life. From stray animal management and vaccination campaigns to fostering community engagement and supporting animal rescue efforts, the Animal Welfare Board of India (AWBI) brought a handbook on "**Animal Law Handbook for Urban Local Bodies**". This handbook has been meticulously crafted to assist urban local bodies in developing effective, humane and sustainable animal management practices. It serves as a comprehensive guide that not only covers essential laws and guidelines but also provides insights into practical, real-world solutions for challenges faced by local authorities.

This handbook provides best practices for managing domestic and stray animals within urban localities. From public health considerations to animal welfare standards, our goal is to support urban local bodies in creating policies and programs that enhance the quality of life for both human and animal inhabitants. It brings together key legal principles, policies, guidelines, and best practices aimed at promoting the ethical treatment of animals within urban spaces, whether they are domestic pets, stray animals, or wildlife.

This document will empower the local bodies, municipal officers and concerned citizens to create a sustainable urban environment where both people and animals can thrive together in harmony. By applying the principles and practices outlined within these pages, it can be ensured that urban spaces remain safe, inclusive and compassionate for all living beings.

This hand book, conceptualized, developed, authored and edited by Ms. Gauri Maulekhi, Mrs. Prachi Jain, Adv. Shalili Aggarwal and Ms. Shreemoyee Chakraborty, represents a comprehensive resource for urban local bodies.


(Dr. S. K. Dutta)
Secretary

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Introduction

Urban Local Bodies (ULBs), as constitutionally mandated institutions of local self-governance, bear the fundamental responsibility of managing and safeguarding diverse animal populations within their territorial jurisdictions. This mandate encompasses the welfare and management of domesticated animals, livestock, and urban wildlife, necessitating a balanced approach that harmonises public health, community safety, and animal welfare imperatives.

Legal Framework:

The animal management practices and statutory duties of ULBs are governed by a comprehensive legal framework comprising various laws outlined below:

1. The Constitution of India.
2. *The Prevention of Cruelty to Animals Act, 1960* and Rules promulgated thereunder.
3. *Prevention and Control of Infectious and Contagious Diseases in Animals Act, 2009*
4. *Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011*
5. *CPCB's Guidelines for Environmental Management of Dairy Farms and Gaushalas (July 2021)*

The handbook also includes some of the relevant court decisions and judgements that provide crucial guidance for ULBs in their animal management efforts.

Of particular importance are:

The Hon'ble Supreme Court rulings on stray dog management (*Animal Welfare Board of India vs. People for Elimination of Stray Troubles, 2024*) and animal custody (*Raghuramsharma & Anr. vs. C. Thulsi & Anr., 2020; Meher Banu Begum vs. State of Assam, 2022*) have provided critical guidance on humane treatment of animals and the legal obligations of ULBs.

Additionally, Supreme Court's directives on the formation of State Slaughterhouse Monitoring Committees (*Laxmi Narain Modi vs. Union of India, 2012*) and adherence to statutory requirements for slaughterhouses (*Common Cause vs. Union of India, 2017*) have set new standards for meat processing facilities. The National Green Tribunal's emphasis on environmental considerations for slaughterhouses (*Gauri Maulekhi vs. Ministry of Environment, Forest and Climate Change, 2022*) and dairies (*Nuggehalli Jayasimha v. Govt. of NCT of Delhi, 2023*) underscores the need for a holistic approach to animal management.

Introduction

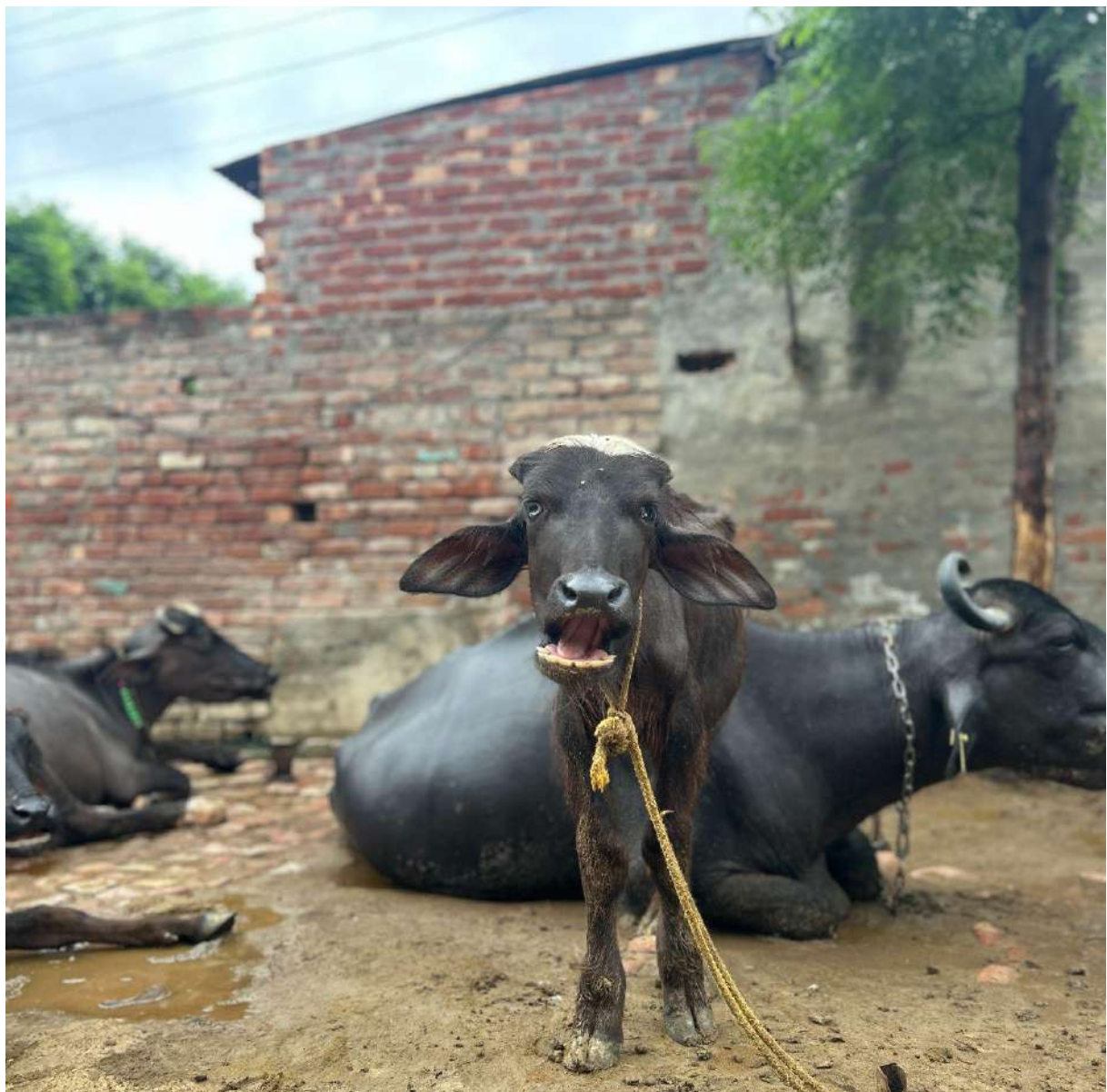
These judicial pronouncements have collectively established that Municipal Corporations and ULBs are not mere facilitators but primary stakeholders with defined statutory obligations in urban animal management. The courts have consistently emphasised that these responsibilities form an integral part of ULBs' fundamental duties towards animal welfare, public health, sanitation, and community welfare.



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Constitutional Framework For Animal Management For Urban Local Bodies

For Urban Local Government, the Twelfth Schedule (Article 243W) grants the authority to regulate slaughterhouses and tanneries, establish cattle pounds and prevent cruelty to animals and provide for public health, sanitation conservancy, solid waste management. These provisions establish a foundational framework for animal management responsibilities exercised by respective local bodies.



Animal Birth Control And Population Management

The Supreme Court of India has unequivocally established that the killing or displacement of street dogs is illegal and prohibited under law. Urban Local Bodies (ULBs) are legally mandated to implement only those population control measures prescribed under the *Animal Birth Control Rules, 2023*.

Key Legal Obligations of ULBs:

1. Implementation of Animal Birth Control (ABC) programmes in strict accordance with the *Animal Birth Control Rules, 2023*
2. Provision of requisite infrastructure and facilities for ABC implementation

3. Prohibition of:

- Killing of street dogs
- Relocation or displacement of dogs from their territories
- Any population control methods not prescribed under *ABC Rules, 2023*

The following sections detail the specific statutory requirements, implementation protocols, and compliance obligations for ULBs under the *ABC Rules, 2023*:



Animal Birth Control And Population Management

Provision	Description	Particulars	Notes
Rule 3, 10, <i>Animal Birth Control Rules 2023</i>	ABC Programme Implementation Options	ULBs may engage the service of AWOs with relevant expertise and which are duly recognised by AWBI [Rule 3(1)] ULBs may also conduct ABC programmes through own veterinary officers [Rule 3(1)] or through Special Purpose Vehicle with hired staff [Rule 10(5)] ULBs conducting ABC programmes through their own veterinary officer or through SPV to intimate AWBI. [Rule 3(6)]	See <i>Annexure-A for Form I to be submitted to AWBI for project recognition.</i> See <i>Annexure-B for Form IV to be submitted to AWBI for project renewal.</i>
Rule 3, 5 and 6, <i>Animal Birth Control Rules 2023</i>	Mandatory Project Recognition	ULBs conducting the programme through SPV or their own veterinary officers need to obtain mandatory Certificate of Project Recognition from AWBI for conducting ABCs programme. ULB must also verify that AWOs engaged by them are recognised by the Animal Welfare Board of India (AWBI) and have obtained the required Certificate of Project Recognition from the Board [Rule 3(2)] No ABC programme shall be carried out without obtaining	

Animal Birth Control And Population Management

Provision	Description	Particulars	Notes
		days prior to expiry with a renewal fee of Rs. 5000. [Rule 6] PV to intimate AWBI. [Rule 3(6)]	
Rule 10, <i>Animal Birth Control Rules 2023</i>	Obligations of ULBs	ULBs to ensure Adequate facilities at ABC Centres including [Rule 10(a-h)] a. Sufficient number of kennels and veterinary hospital facilities, b. Sufficient number of vans with modification for safe handling of animals, c. surgical infrastructure, d. incinerators, e. CCTV, f. hygiene, g. record-keeping Reimbursement of expenses to engaged AWOs regularly [Rule 10(2)] Constitution of Local ABC Monitoring Committee for monthly assessment. [Rule 10(3)] Investigation of complaints against ABC centres and terminate or suspend engagement with implementing	

Animal Birth Control And Population Management

Provision	Description	Particulars	Notes
		agencies based on recommendations from the Local Animal Birth Control Monitoring Committee or the Board. [Rule 10(4)] ULBs may conduct ABC programme through own Special Purpose Vehicle with hired staff The SPV can hire staff (veterinarians, handlers, etc.) and cannot subcontract the project. [Rule 10(5)] ULBs to make sure that SPV staff are duly trained. The Project In-charge, appointed by the ULB, must not be part SPV. [Rule 10(6 & 7)]	
Rule 11, <i>ABC Rules 2023</i>	Dog Population Management and Control	ULBs to conduct ABC programme for general population control [Rule 11(1)(a)] ULBs to set up Animal Complaint Cell for receiving dog bite complaints [Rule 11(1)(b)]	
Rule 11, <i>Animal Birth Control Rules 2023</i>	Guidelines on dog Capturing, Sterilisation, Immunization and Release	ULBs to: Issue valid ID cards to dog capturing team members [Rule 11(2)]	The dog capturing team should consist of 1. Driver 2. Two or

Animal Birth Control And Population Management

Provision	Description	Particulars	Notes
		Put up public notices before capturing dogs [Rule 11(3)] Ensure humane capture methods [Rule 11(5)] Provide adequate housing at ABC Center [Rule 11(6)] Ensure proper kenneling, surgical procedures, post-op care [Rule 11(10-18)] Release dogs in same area where from they were picked up after recovery [Rule 11(19)] Follow Standard Operating Procedures in AWBI Module [Rule 11(20)]	More personnel trained in humane handling 3. One AWBI nominated representative.
Rule 12, <i>Animal Birth Control Rules 2023</i>	Maintenance of Records	Project-Incharge of ABC programme being carried out by ULB to maintain detailed records of:- - Captured/treated animals - Feeding - Treatment - Medicines and vaccines - Mortality - Equipment - Dog van logbooks - Staff attendance - Organ inspection - CCTV footage	Applicable when the ULB conducts the ABC program through their own veterinary officers

Animal Birth Control And Population Management

Provision	Description	Particulars	Notes
Rule 15, <i>Animal Birth Control Rules 2023</i>	Euthanasia of Incurably ill and mortally wounded Street Dogs	Local Animal Birth Control Monitoring Committee to appoint team consisting of Jurisdictional Veterinary Officer, the Project In-Charge and a Representative of the AWBI or State Animal Welfare Board (State Board) to diagnose incurably ill/wounded dogs [Rule 15(1)]	The incurably ill or mortally wounded dog shall only be euthanised in a humane manner by qualified veterinarian and the record of euthanasia along with reason is to be maintained. No animal can be euthanised in front of another animal and it is to be made sure by the person euthanising the animal that the animal is dead before the body is disposed of.
Rule 16, <i>Animal Birth Control Rules 2023</i>	Resolution of Complaints regarding dog bites and rabid dogs.	ULBs to: Establish Animal Helpline for complaints [Rule 16]. Project In-Charge or the Animal	Suspected rabid dogs must be captured humanely, showing

Animal Birth Control And Population Management

Provision	Description	Particulars	Notes
		Welfare Organisation shall be responsible for recording and resolving conflict cases that may be reported.[Rule 16].	symptoms of communicable disease, and assessed by a panel of experts,
		Share dog bite information with Govt Medical Hospital [Rule 16(2)]	including a veterinarian and a representative of AWO. [Rule 16(3 & 4)]
		Arrange for observation of suspected rabid dogs [Rule 16(3-7)]	
		Reimburse AWOs for keeping dogs under observation [Rule 16(8)]	High probability rabid dogs shall be isolated until natural death, while non-rabid dogs with treatable conditions will be cared for by an AWO and released after a 10-day observation period. [Rule 16(5 & 6)]
		Display outreach material about street dogs [Rule 16(9)]	Carcasses of suspected rabid dogs must be disposed of

Animal Birth Control And Population Management

Provision	Description	Particulars	Notes
			through incineration or other methods approved by the Chief Veterinary Officer of the District. [Rule 16(7)]
Rule 17, <i>Animal Birth Control Rules 2023</i>	Counting and Disposal of Organs-	Organs to be counted fortnightly or monthly or as often as decided by the Local Animal Birth Control Monitoring Committee by designated team consisting of (i) Chief Veterinary Officer or any Veterinary Officer authorised by him; (ii) Project In-Charge Veterinary Officer; (iii) Representative of the State Board or Society for Prevention of Cruelty to Animals; (iv) Representative of any Animal Welfare Organisation: Provided that the Animal Welfare Organisation which is conducting the Animal Birth Control program shall not be part of the Organ Inspection Team[Rule 17(1)]	Organs to be stored in 10% Formaldehyde Post counting the organs are to be immediately destroyed, in presence of organ inspection team, by spraying of tattoo dye and deep burial or incineration. The process of dying and burying the organs shall be video recorded and photographed with the date and time stamp.

Animal Birth Control And Population Management

Provision	Description	Particulars	Notes
Rule 19, <i>Animal Birth Control Rules 2023</i>	Sterilisation and Immunisation of Cats	ULBs to: Provide infrastructure and reimbursement for cat sterilisation programs [Rule 19(1)]	Cats may be sterilised in the ABC centre where dog sterilisations are carried out but cats are not housed with dogs [Rule 19(2-3)]
Rule 20, <i>Animal Birth Control Rules 2023</i>	Feeding of Community Animals-	Make arrangements for feeding of community animals in collaboration with residents and animal caregivers.	

Relevant Case Laws and Orders:

Judgement dated 09.05.2024 of the Hon'ble Supreme Court in *Animal Welfare Board of India (AWBI) Vs. People for Elimination of Stray Troubles & Ors.* [S.L.P.(C) 691/2009]: The Hon'ble Supreme Court directed all municipal corporations and municipal committees to take guidance from *Prevention of Cruelty to Animals Act, 1960* and Rules pertaining to Animal Birth Control. While acknowledging the need to protect lives of humans, the Apex Court held that there should be no administrative lapse or subterfuge adopted to evade implementation of *PCA, 1960* or Rules made thereunder. Further the Court held that there is no provision in law for indiscriminate killing of dogs.

Animal Slaughter and Slaughterhouse Regulations

The regulation of animal slaughter falls under the critical statutory responsibilities of ULBs, governed by multiple legislations including the *Prevention of Cruelty to Animals (Slaughter House) Rules, 2001*, and the *Food Safety and Standards Act, 2006*. This legal framework establishes strict protocols for:

1. Licensing and Operations
 - Slaughter permitted only in licensed establishments
 - Mandatory FSSAI licensing with ULB No-Objection Certificate
 - Prohibition of slaughter in meat shops, markets, or places of worship
2. Species Restrictions
 - Only specified animals (sheep, goat, pig, rabbit, poultry, and fish) permitted for food
 - Strict prohibition on sacrifice of any animal
 - Special protections for pregnant animals and young offspring
3. Public Health and Food Safety
 - Mandatory ante-mortem and post-mortem inspections
 - Veterinary supervision requirements
 - Hygiene and sanitation standards

The following sections detail the specific statutory obligations of ULBs in regulating and monitoring animal slaughter within their jurisdictions:



Animal Slaughter and Slaughterhouse Regulations

Provision	Description	Particulars	Notes
<i>Rule 3, Prevention of Cruelty to Animals (Slaughter House) Rules, 2001;</i>	General Provisions	Animals can only be slaughtered in licensed slaughterhouses[<i>Rule 3(1)</i>].	No animal can be slaughtered in a meat Shop, municipal markets, places of worship etc. No animal other than sheep, goat, pig, rabbit, poultry and fish are allowed to be slaughtered for food. [Regulation 2.5 of <i>Food Safety and Standards (Food Product Standards and Food Additives) Regulations, 2011</i>] No animal which is pregnant, has offspring less than 3 months old, is under the age of 3 months
Animal Law Handbook For Urban Local Bodies			

Animal Slaughter and Slaughterhouse Regulations

Provision	Description	Particulars	Notes
			or which has not been issued a fitness certificate by a veterinary doctor can be slaughtered. [Rule 3, <i>Slaughterhouse Rules, 2001</i>]
Section 31, <i>The Food Safety and Standards Act, 2006</i> ; Regulation 2.1.2 and Schedule I, <i>Food Safety and Standards (Licensing and Registration of Food Business), Regulations 2011</i>	Licensing	ULB shall only provide an NOC for a meat shop or a slaughterhouse but the licence for the same must be obtained from the Food Safety Department [Section 31, <i>FSS Act, 2006</i>] depending on size of business. [Regulation 2.1.2 and Schedule I, <i>FSS Licensing Regulations, 2011</i>]	Earlier Municipal authorities and local bodies were allowed to give licences, however after <i>Food Safety and Standards (Licensing and Registration of Food Business), Regulations 2011</i> only the FSSAI can issue licences. These licences may be issued, only after slaughterhouses and meat shops have obtained NOC from the

Animal Slaughter and Slaughterhouse Regulations

Provision	Description	Particulars	Notes
			municipal body. Thus, only a licence by the FSSAI is valid. FSSAI issues two types of licences /registrations: a. For slaughterhouses: where animals may be slaughtered in prescribed manner b. For meat shops: Where meat products may be sold. Punishment for selling or slaughtering animals without a licence is imprisonment up to 6 months and fine up to 5 lakh. [Section 63 of <i>The Food Safety and Standards Act, 2006</i>]
Rule 3(3), <i>Prevention of Cruelty to</i>	Determination of Slaughterhouse capacity	ULBs to determine maximum number of animals that may be slaughtered daily in each	

Animal Slaughter and Slaughterhouse Regulations

Provision	Description	Particulars	Notes
<i>Animals (Slaughter House) Rules, 2001;</i>		slaughterhouse based on slaughterhouse capacity and local population needs	notice to owner/person-in-charge.
Rule 8(1), <i>Prevention of Cruelty to Animals (Slaughter House) Rules, 2001;</i>	Licences for person performing slaughter	ULBs to issue licences to persons for slaughtering animals	Owners/occupiers of slaughterhouses shall only employ: -Licensed individuals. -Individuals over 18 years of age -Individuals free from communicable diseases.
Rule 9(2), <i>Prevention of Cruelty to Animals (Slaughter House) Rules, 2001;</i>	Action on non-compliance with Rules.	ULBs to take appropriate action, including initiation of legal proceedings, based on inspection reports of slaughterhouses received from AWBI authorised persons.	Inspection of slaughterhouses to happen at working hours without notice to owner/person-in-charge
Clause 10.03, Part IV, Regulation 2.1.2 <i>FSSAI (Licensing and Registration of Food Businesses) Regulations, 2011.</i>	Licensing	ULBs or Police to give NOC for buffalo meat and pork shops before licence is granted	

Animal Slaughter and Slaughterhouse Regulations

Provision	Description	Particulars	Notes
Clause 10.04, Part IV, Regulation 2.1.2, FSSAI (Licensing and Registration of Food Businesses) Regulations, 2011.	Appoint Veterinary staff for meat inspection	ULBs to appoint qualified veterinary staff for meat inspection (ante mortem and post mortem)	ULBs can make contractual arrangements with Animal Husbandry Departments if regular staff unavailable

Relevant Case Laws and Orders:

1. **Order of the Hon'ble Supreme Court dated 23.08.2012 in *Laxmi Narain Modi vs. Union of India & Ors.* [Writ Petition (Civil) No. 309/2003]:** The Hon'ble Supreme Court mandated the constitution of State Monitoring Committees for supervising and monitoring slaughterhouse operations. The Court specified the composition of these committees to include representatives from Urban Development (Chairman), Health, Animal Husbandry, Labour, Food Safety, State Pollution Control Board, State Animal Welfare Board, and State Police. These directions establish the institutional framework for comprehensive oversight of slaughterhouse operations.
2. **Order of the Hon'ble Supreme Court dated 17.02.2017 in *Common Cause, A Regd. Society v. Union of India & Ors.* [Writ Petition (Civil) No. 330/2001]:** The Apex Court directed the Central Government to publish a comprehensive Compendium containing all legal provisions governing slaughterhouses. This judgment underscores the importance of having a consolidated reference of regulatory requirements for slaughterhouse operations and ensures standardised implementation across jurisdictions.

Animal Market Regulation and Management

Under Rule 2(k) of the *Prevention of Cruelty to Animals (Regulation of Livestock Markets) Rules, 2017*, an "animal market" means "any market, animal market complex, sale-yard or any other premises or place to which animals are brought from other places and exposed for sale or auction and includes any lairage adjoining a market or a slaughterhouse and used in connection with it and any place adjoining a market used as a parking area by visitors to the market for parking vehicles and includes animal fair and cattle pound where animals are offered or displayed for sale or auction."

The *Prevention of Cruelty to Animals (Regulation of Livestock Markets) Rules, 2017* vests ULBs with comprehensive statutory authority and obligations for regulating livestock markets. These markets must operate under strict regulatory oversight to ensure animal welfare, prevent illegal trading practices, and maintain public health standards.

Key Statutory Requirements:

- 1. Market Establishment and Registration**
 - Mandatory registration of all existing markets
 - Prior approval for new market establishments
- 2. Institutional Framework**
 - Constitution of Animal Market Committees
 - Appointment of authorised veterinary inspectors
 - Integration with District Animal Market Monitoring Committee
- 3. Regulatory Oversight**
 - Regular inspections and monitoring
 - Prevention of cruelty and illegal practices
 - Documentation and record-keeping requirements

The following sections detail the specific legal obligations of ULBs in establishing, maintaining, and regulating livestock markets within their jurisdictions:

Animal Market Regulation and Management

Provision	Description	Particulars	Notes
Rule 6, <i>Prevention of Cruelty to Animals (Regulation of Livestock Markets) Rules, 2017</i>	Establishment of New Animal Markets	When the establishment of new animal market is deemed necessary, ULBs shall: 1. Identify suitable location of new animal market, develop blueprint of animal market and submit to District Animal Market Monitoring Committee for approval [Rule 6(1)&(2)]	District Animal Market Monitoring Committee may: 1. Approve blueprint [Rule 6(2)] 2. Seek modification of blueprint [Rule 6(2)] 3. Reject proposal (with reasons in writing) [Rule 6(2)] 3. Every new animal market shall apply for registration to the District Animal Market Monitoring Committee. [Rule 6(3)]
Rule 5, <i>Prevention of Cruelty to Animals (Regulation of Livestock Markets) Rules, 2017</i>	Registration of Existing Animal Markets	ULBs shall: 1. Make list of animal markets functional prior to rule commencement [Rule 5(2)] 2. Ensure existing markets register with District Animal Market Monitoring Committee [Rule 5(3)]	Registration deadline: Within 3 months from rule commencement [Rule 5(3)]

Animal Market Regulation and Management

Provision	Description	Particulars	Notes
Rule 4, Constitution of Animal Market Prevention of Cruelty to Animals (Regulation of Livestock Markets) Rules, 2017	Constitution of Animal Market Committee	ULBs shall: Constitute committee in consultation with District Magistrate and State Board for managing district animal markets [Rule 4(1)]	Committee composition: 1.Chairman of local authority (Chairman) 2.Chief Municipal Officer (Member Secretary) 3.Jurisdictional officials (Tahsilidar, Forest Range Officer, Veterinary Officer, Police Inspector) 4.SPCA Representative 5.2 representatives from Animal Welfare Organisations 6.Five members form the quorum for meetings. <i>Persons convicted under the Act or state cattle preservation laws are prohibited from being commit-</i>

Animal Market Regulation and Management

Provision	Description	Particulars	Notes
			tee members. Member Sec- retary/Chief Municipal Officer is responsible for ensuring Rule compliance [Rule 4(2-5)]
Rule 10, <i>Prevention of Cruelty to Animals (Regulation of Livestock Markets) Rules, 2017</i>	Compliance with State Board Directions	ULBs shall: Follow directions given by State Board to facilitate Rule compliance [Rule 10(1)] Animal Market Committee to provide all records and information pertaining to animal market functioning to the State Board as and when required. [Rule 10(2)]	
Rule 11, <i>Prevention of Cruelty to Animals (Regulation of Livestock Markets) Rules, 2017</i>	Authorisation of Inspections and Seizure	ULBs has the power to authorise any of its officers in writing to: 1. Enter and inspect animal markets at a reasonable time. 2. Require production of records 3. Seize animals treated cruelly, and 4. Take photographic and video evidence of cruelty to ensure Rule compliance	Seized animals to be kept in custody of local SPCA or recognised animal welfare organisations. [Rule 10(c)]

Animal Market Regulation and Management

Provision	Description	Particulars	Notes
Rule 12(1), <i>Prevention of Cruelty to Animals (Regulation of Livestock Markets) Rules, 2017</i>	Veterinary Inspectors at Animal Markets	Every animal market shall have adequate number of veterinary inspectors and para-veterinary staff authorised by the District Animal Marketing Committee	Veterinary inspector is a registered veterinarian authorised by ULBs to perform duties under the <i>Prevention of Cruelty to Animals (Regulation of Livestock Markets) Rules, 2017</i> . [Rule 2(n)]
Rule 12(2), <i>Prevention of Cruelty to Animals (Regulation of Livestock Markets) Rules, 2017</i>	Pre-entry Screening	Veterinary Inspectors shall: Screen animals for suspected contagious and infectious diseases before entering the market	Diseases include Foot and Mouth Disease, Glanders, Strangles, Peste des petits, Rinder Pest, etc. Suspected animals shall not be allowed to enter and shall be treated or sent back
Rule 12(3), 12(4), <i>Prevention</i>	Arrival Inspection	Veterinary Inspectors shall: Supervise unloading and arrival of animals	

Animal Market Regulation and Management

Provision	Description	Particulars	Notes
<i>of Cruelty to Animals (Regulation of Livestock Markets) Rules, 2017</i>		Inspect all animals as soon as practical after arrival Check load against transport documentation	
Rule 12(5), <i>Prevention of Cruelty to Animals (Regulation of Livestock Markets) Rules, 2017</i>	Treatment of Animals	Veterinary Inspectors shall: Treat or supervise treatment of ill, sick, or injured animals	
Rule 12(6), <i>Prevention of Cruelty to Animals (Regulation of Livestock Markets) Rules, 2017</i>	Handling Supervision	Veterinary Inspectors shall: Monitor handling of all animals in the market and ensure humane handling	
Rule 12(7), <i>Prevention of Cruelty to Animals (Regulation of Livestock Markets) Rules, 2017</i>	Loading Supervision	Veterinary Inspectors shall: Supervise loading of animals from the market Ensure all animals are fit for intended journey Provide necessary veterinary certification	

Animal Market Regulation and Management

Provision	Description	Particulars	Notes
		Camels may not be loaded without written permission from District Magistrate or Collector	
Rule 12(8), <i>Prevention of Cruelty to Animals (Regulation of Livestock Markets) Rules, 2017</i>	Record Keeping	Veterinary Inspectors shall: Maintain records of all animals inspected, treated, certifications issued, and unfit animals	Include actions taken for animals found unfit for transport
Rule 12(9), <i>Prevention of Cruelty to Animals (Regulation of Livestock Markets) Rules, 2017</i>	Emergency Euthanasia	Veterinary Inspectors shall: Ensure provision for emergency euthanasia of severely injured or terminally ill animals	All carcasses, including naturally dead animals, shall be incinerated, not sold or flayed for leather
Rule 12(10), <i>Prevention of Cruelty to Animals (Regulation of Livestock Markets) Rules, 2017</i>	Marking Unfit Animals	Veterinary Inspectors shall: Mark animals that are unfit for sale to prevent trading.	
Rule 12(11), <i>Prevention of Cruelty to Animals (Regulation of</i>	Transport Supervision	Veterinary Inspectors shall: Ensure animals are transported only in authorised vehicles	

Animal Market Regulation and Management

Provision	Description	Particulars	Notes
<i>Livestock Markets) Rules, 2017</i>	Transport Supervision	Prevent overloading or improper tying of animals Prevent any loading method that may cause injury	
Rule 19, <i>Prevention of Cruelty to Animals (Regulation of Livestock Markets) Rules, 2017</i>	Feed Price Regulation	ULBs through CMO to ensure: Animal feed is sold at a specified price at animal markets.	
Rule 22, <i>Prevention of Cruelty to Animals (Regulation of Livestock Markets) Rules, 2017</i>	Restrictions on Sale of Cattle	ULBs through CMO shall regulate cattle sales as follows: Pre-Sale Requirements: No animal below the age of 6 months is brought to the market for sale Documentation requirements for cattle: - Owner declaration with ID proof Cattle identification details Sale Process Requirements: Before the removal of an animal already sold: a. Collect approved expenses for basic facilities as approved by District Animal Market Committee b. Issue 5 copies of sale proof	Animal Market Committee to maintain the record for 6 months and make them available to an inspector on demand. Purchaser Obligations: 1. Follow state cattle protection or prevention laws 2. No interstate sale without proper

Animal Market Regulation and Management

Provision	Description	Particulars	Notes
		for distribution to: 1. Purchaser 2. Seller 3. Tehsil office (purchaser's residence) 4. Chief Veterinary Officer (purchaser's district) 5. Animal Market Committee record	permissions as per the State cattle protection or preservation law
Rule 24, <i>Prevention of Cruelty to Animals (Regulation of Livestock Markets) Rules, 2017</i>	Accommodation For Unfit Animal	ULBs to ensure: 1. Special provisions: - Suitable pens for separating unfit animals from other animals, which shall be clearly marked and entry in such pens is prohibited, unless authorised by the veterinary inspector	



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Pet Animal Trade Regulation

The *Prevention of Cruelty to Animals (Dog Breeding and Marketing) Rules, 2017*, and the *Prevention of Cruelty to Animals (Pet Shop) Rules, 2018*, establish a mandatory two-tier regulatory framework for pet animal establishments. Under this framework, Urban Local Bodies serve as secondary licensing authorities, with primary oversight vested in State Animal Welfare Boards.

Key Regulatory Requirements:

1. Dog Breeding Establishments
 - ULB licensing contingent on valid State Board registration
 - Prohibition on unauthorised breeding operations
2. Pet Shop Operations
 - Compulsory State Animal Welfare Board registration
 - ULB licensing subject to valid registration status
 - Prevention of unauthorised pet trade

The following sections detail the specific statutory prerequisites for ULB licensing of pet animal establishments:



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Pet Animal Trade Regulation

Provision	Description	Particulars	Notes
Rule 13, <i>Prevention of Cruelty to Animals (Dog Breeding and Marketing) Rules, 2017,</i>	Licensing of Dog Breeding Establishments	ULBs shall not grant licence to any for breeding or housing dogs for breeding without them having obtained registration from State Animal Welfare Board first.	
Rule 14, <i>Prevention of Cruelty to Animals (Pet Shop) Rules, 2018</i>	Licensing of Pet Shops	ULBs shall not grant licence to any pet shop without the shop having obtained registration from the State Animal Welfare Board first.	

Relevant Case Laws and Orders:

Order of the Hon'ble Karnataka High Court dated 05.02.2020 in *Compassion Unlimited Plus Action vs. Bruhat Bengaluru Mahanagara Palike* [W.P. No 4151 of 2019]: The Hon'ble Court of in this case directed that no establishment which engages in breeding and selling dogs can be allowed to function unless they have obtained the necessary certificates of registration under Rule 3 of *The Prevention of Cruelty to Animals (Dog Breeding, Marketing) Rules, 2017* and Rule 3 of *The Prevention of Cruelty to Animals (Pet Shop) Rules, 2018*.

Care and Maintenance of Case Property

The *Prevention of Cruelty to Animals (Care and Maintenance of Case Property Animals) Rules, 2017* establishes a comprehensive framework for the custody and maintenance of animals seized in cruelty cases. These Rules vest ULBs with specific responsibilities, including oversight of bond execution, management of abandoned animals, and implementation of maintenance protocols. The framework is further strengthened by significant judicial precedents, which have established clear principles regarding custody determination and animal welfare protection.

The following sections detail the specifics:



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Care and Maintenance of Case Property

Provision	Description	Particulars	Notes
Rule 5(8) <i>The Prevention of Cruelty to Animals (Care and Maintenance of Case Property Animals) Rules, 2017</i>	Execution of Bond and Local Authority Responsibility	1. Magistrate determines the bond amount for animal care costs. 2. Accused and owner must execute the bond within three days. 3. If bond is not executed, the animal forfeited to custodial organisation. 4. If the owner and accused cannot furnish bond, the magistrate directs ULBs to undertake costs.	Costs cover transport, maintenance, and treatment of seized animals. ULBS to recover costs as arrears of land revenue. Applies to animals seized as case property in cruelty cases.
Rule 6(1), <i>The Prevention of Cruelty to Animals (Care and Maintenance of Case Property Animals) Rules, 2017</i>	Handling of Abandoned Animals	ULBs to undertake costs for care of abandoned animals	Applies when the investigating officer can't determine the accused or owner. Relinquishment doesn't affect criminal charges against unknown offenders/owners.

Care and Maintenance of Case Property

Relevant Case Laws and Orders:

1. **Order of the Hon'ble Supreme Court dated 05.02.2020 in *Raghuramsharma & Anr. v.s C. Thulsi & Anr.* [Crl. A. 230/2022]:** The Hon'ble Supreme Court of India in this case directed that the interim custody of the cattle should not be handed over to the accused. It was further directed that custody of the cattle/animals be retained by the appellants, subject to verification of their profile and the identity of the cattle. These directions illustrate the importance of ensuring animals who have been prima facie subject to cruelty are not returned to the accused.
2. **Order of the Hon'ble Supreme Court dated 26.09.2022 in *Meher Banu Begum v. State of Assam & Anr.* [Misc. Application No. 1620/2022 in SLP(Crl) No. 9997/ 2021]:** The Apex Court of India affirmed that failure to pay the bond as required under Rule 5 of the *Prevention of Cruelty to Animals (Care and Maintenance of Case Property Animals) Rules, 2017* can result in the forfeiture of the animal. This underscores the principle that the Case Property Rules, 2017 do not allow the return of the animals custody to the accused.
3. ***Mustakeem v. State of U. P* [Crl A. Nos. 283-287/2002] :** The Hon'ble Supreme Court held that once an animal is seized from an individual because it is subjected to cruelty when the animal is in his/her possession, under no circumstances whatsoever shall the animals be returned to the same person who previously inflicted cruelty upon the said animal.

Regulatory Framework For Cattle Premises and Equine-Related Services

The *Prevention of Cruelty to Animals Act*, along with its subsidiary Rules, establishes a comprehensive regulatory framework governing livestock facilities and equine-related services in urban areas. ULBs are vested with statutory authority to oversee animal pounds, dairy establishments, farrier services, and cattle premises. This framework mandates specific standards for animal welfare and public health compliance through systematic registration, licensing, and monitoring protocols. The regulations encompass joint management with Animal Welfare Organisations, mandatory licensing of farriers, registration of cattle premises housing five or more cattle, and stringent compliance requirements including environmental guidelines and veterinary inspections. These provisions collectively ensure professional service delivery, animal welfare protection, and maintenance of public health standards across all regulated establishments.

The following table elaborates on the key statutory mandates, specific requirements, and implementation protocols:



Regulatory Framework For Cattle Premises and Equine-Related Services

Provision	Description	Particulars	Notes
Cattle Pound			
Rule 4(4) <i>Prevention of Cruelty to Animals (Establishment and Regulation of Societies for Prevention of Cruelty to Animals) Rules, 2001</i>	Management of Cattle Pounds and Pinjra Poles	All cattle pounds and pinjrapoles owned and run by a local authority shall be managed by ULB jointly with the District SPCA or AWO	
Maintenance of Inventory of Dairy Units and Gaushalas			
Point 7, <i>Guidelines for Environmental Management of Dairy Farms and Gaushalas, 2021</i>	Maintenance of Inventory of Dairy Units and Gaushalas	ULBs to carry out an inventory of Dairy units and Gaushalas located in their jurisdiction and monitor them on regular basis to ensure proper disposal of bovine dung and wastewater in compliance with environmental norms	See <i>Annexure C for inventory proforma</i> This inventory should be updated annually on a calendar year basis and shared with the State Pollution Control Board /Pollution Control Committee (PCC). ULBs shall

Regulatory Framework For Cattle Premises and Equine-Related Services

Provision	Description	Particulars	Notes
			publish a public notice in newspapers and on their website for the registration of Dairy units and Gaushalas as per municipal laws and the registered establishments should be displayed on their website. ULBs to upload the Environmental Guidelines on their websites and also circulate the same to all registered Dairy units and Gaushalas within their jurisdiction.
Licensing of Farriers			
Rules 2(d), 6, <i>Prevention of Cruelty to Animals</i>	Licensing Authority Powers and Licence Issuance	ULBs (when designated by State Govt as licensing authority) shall: Process and grant farrier	See <i>Annexure-D for Prescribed Form for Licence</i>

Regulatory Framework For Cattle Premises and Equine-Related Services

Provision	Description	Particulars	Notes
(Licensing of Farriers) Rules, 1965		licences, after verifying applicant's fitness and qualifications and ensuring proper equipment availability for the purpose of conducting his business.	Tools to be verified include: -Driving hammer with claws -Hand hammer -Drawing knife -Scorcher knife -Pincers -Buffer -Rasp -Chisel for cutting bar iron -Punch for nail holes -Nails for shoeing -Twitch -Wooden plank -Iron anvil -Good quality wrought iron
Rules 7, 8, 12, Prevention of Cruelty to Animals (Licensing of Farriers) Rules, 1965	Licence Administration	ULBs (when designated by State Govt as licensing authority) shall: Issue licences valid for 2 years -Renew licence -After making relevant inquiry, issue duplicates when the licence is defaced, lost or destroyed -Collect prescribed fees	Renewal requires an application stating the intended period. Renewal period is max 2 years at a time

Regulatory Framework For Cattle Premises and Equine-Related Services

Provision	Description	Particulars	Notes
Rule 10, <i>Prevention of Cruelty to Animals (Licensing of Farriers) Rules, 1965</i>	Inspection and Enforcement	ULBs (when designated by State Govt as licensing authority) are empowered to: Enter place of business and conduct inspections during normal working hours Cancel licence for: poor quality work, inadequate equipment, rule violations .	Must give reasonable opportunity of hearing before cancellation Appeals against cancellation can be filed with authority specified by State Government
Rule 13, <i>Prevention of Cruelty to Animals (Licensing of Farriers) Rules, 1965</i>	Record Keeping	ULBs (when designated by State Govt as licensing authority) shall: Maintain comprehensive register of all licences	
Registration of Cattle Premises			
Rules 2(c), 3, 4, <i>Prevention of Cruelty to Animals (Registration of Cattle Premises) Rules, 1978</i>	Registration Powers and Process	Veterinary Department of ULBs (when designated by State Govt) shall: Act as registering authority for registration of cattle premises Process applications for premises with 5+ cattle kept for profit When processing application for registration, verify information	Applies only to cities/towns with population over 1 lakh Infrastructure details must include: • Floor space • Ventilation • Food/water supply

Regulatory Framework For Cattle Premises and Equine-Related Services

Provision	Description	Particulars	Notes
Rule 10, <i>Prevention of Cruelty to Animals (Licensing of Farriers) Rules, 1965</i>	Inspection and Enforcement	about: • Number and types of animals • Purpose of keeping animals • Infrastructure details	• Disinfection • Drainage • Dung disposal • Boundary walls Owners of premises where milch cattle are kept must prominently display Section 12 of the <i>Prevention of Cruelty to Animals Act, 1960</i>. This display must be: 1. Located prominently in or near the premises 2. Written in a language commonly understood in the locality 3. Clearly visible [Rule 9]

Regulatory Framework For Cattle Premises and Equine-Related Services

Provision	Description	Particulars	Notes
Rule 5, <i>Prevention of Cruelty to Animals (Registration of Cattle Premises) Rules, 1978</i>	Certificate of Management	Veterinary Department of ULBs (when designated by State Govt) shall: After verifying the welfare condition of cattle housed in the premises, issue registration certificates or renew registration certificate	Certificates valid for 3 years -Renewal application required within 3 months of expiry -Must ensure cattle welfare is adequately secured
Rule 6, 7, 8, <i>Prevention of Cruelty to Animals (Registration of Cattle Premises) Rules, 1978</i>	Inspection and Enforcement	Veterinary or Public Health Officer of ULBs (when designated by State Govt) are empowered to: Inspect cattle premises at reasonable times Cancel registration if premises not properly maintained as mandated by <i>Prevention of Cruelty to Animals (Registration of Cattle Premises) Rules, 1978</i>	Must give notice in writing for cancellation -Must provide opportunity to show cause before cancellation
Rule 9, <i>Prevention of Cruelty to Animals (Registration of Cattle Premises) Rules, 1978</i>	Display Requirements	ULBs (when designated by State Govt) to ensure: Display of Section 12 of PCA Act, which deals with penalty and punishment for use of oxytocin and performing <i>phooka and doomdev</i> , in premises with milch cattle	Section 12 must be displayed: In language commonly understood in locality Prominently in/near premises

Regulatory Framework For Cattle Premises and Equine-Related Services

Relevant Case Laws and Orders:

1. **Order dated 02.09.2023 of the Hon'ble National Green Tribunal in *Nuggehalli Jayasimha vs. Govt. of NCT of Delhi* [O.A. No. 46/2018]:** The Hon'ble Tribunal accepted and mandated the enforcement of guidelines proposed by the Central Pollution Control Board for environmental management of dairy farms and gaushalas. The order directs local authorities to maintain inventories of such facilities, requires larger operations to obtain consent under environmental laws, and mandates adherence to specific guidelines for waste management and environmental protection. The Tribunal emphasised the role of local bodies in implementing these guidelines to improve environmental performance of dairy farms and gaushalas in urban areas.
2. **Common Cause v. Union of India, Delhi HC [W.P.(C) 3791/2000]:** The Hon'ble Delhi High Court addressed the issue of stray cattle causing traffic disruptions, safety hazards, and cruelty to the animals themselves. The court observed that letting cattle roam deprived them of food and care, leading to health issues and trauma. The court ordered the relocation of dairies to Delhi's outskirts, mandated tagging of cattle to identify owners, and directed strict action against owners of stray animals. Licences of dairies releasing cattle onto streets were to be canceled, and unauthorised dairies were to lose their electricity supply. Sufficient personnel were to be employed to manage stray cattle, and Delhi's roads were to be cleared of bovine animals. Additionally, the court directed the formation of a committee to oversee Gaushalas.

Prevention and Control of Infectious and Contagious Diseases in Animals

The *Prevention and Control of Infectious and Contagious Diseases in Animals Act, 2009* mandates Urban Local Bodies (ULBs) with specific responsibilities for disease control and prevention in both owned and stray animals. This legislation establishes a comprehensive framework for disease surveillance, control measures, and emergency response protocols. ULBs are required to assist veterinary authorities, implement preventive measures, and manage costs associated with disease control efforts, particularly for ownerless animals. The following table delineates the key statutory obligations, implementation requirements, and specific responsibilities vested with ULBs under this Act.

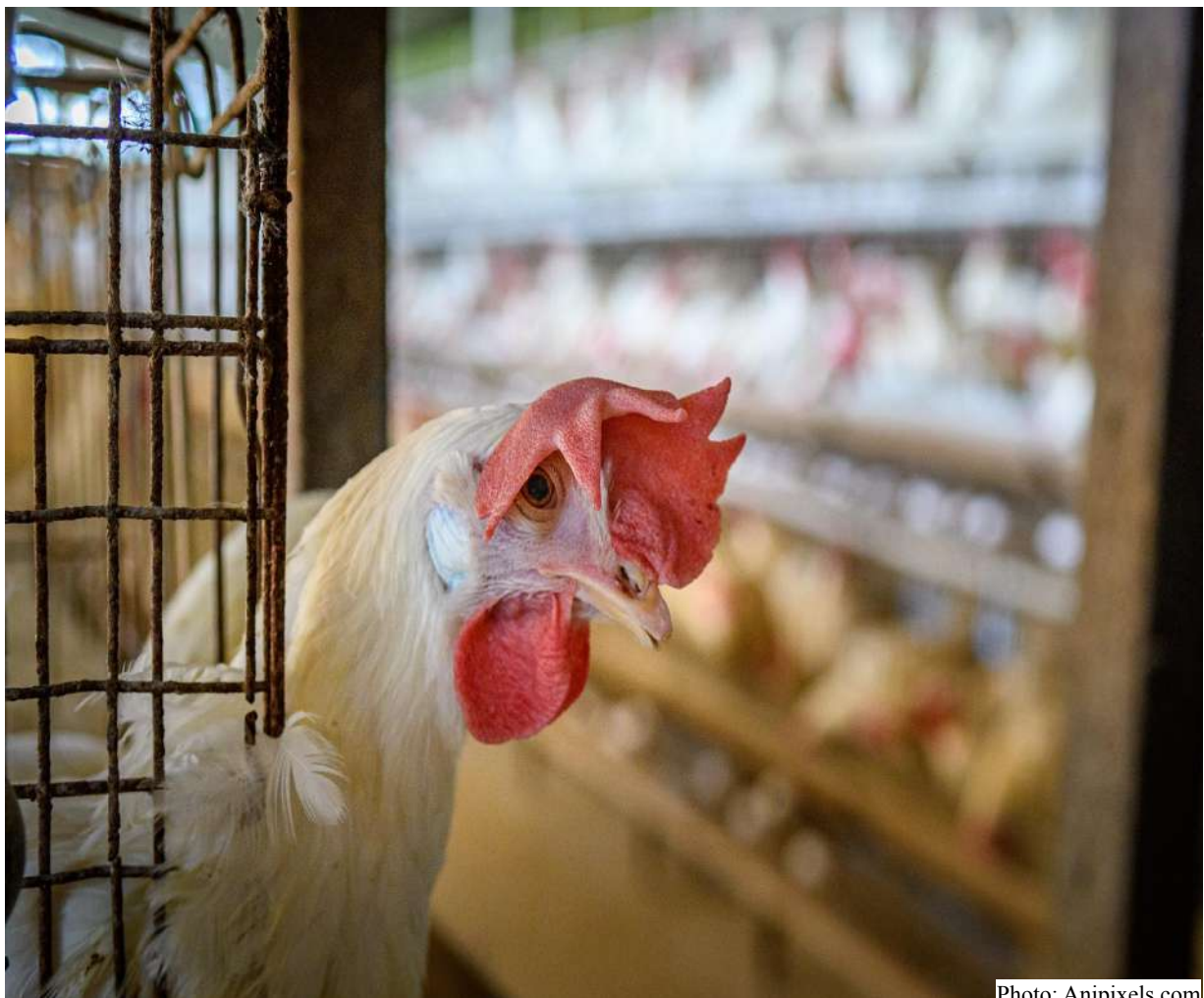


Photo: Anipixels.com

Prevention and Control of Infectious and Contagious Diseases in Animals

Provision	Description	Particulars	Notes
Sec 5(3), <i>Prevention and Control of Infectious and Contagious Diseases in Animals Act, 2009</i>	Segregation of Infected Stray/Ownerless Animals	ULBs must segregate and confine stray/ownerless animals suffering from a scheduled disease to prevent contact with healthy animals	
Sec 29(1)(b), <i>Prevention and Control of Infectious and Contagious Diseases in Animals Act, 2009</i>	Enforcement of Disease Control Measures for Stray/Ownerless Animals	ULBs must promptly comply with any rule, notification, notice, requisition, order, or direction issued under the Act regarding stray/ownerless animals.	Includes carcass disposal and movement restrictions as per issued orders.
Sec 29(2) & (3), <i>Prevention and Control of Infectious and Contagious Diseases in Animals Act, 2009</i>	Implementation of Measures and Cost Recovery	ULBs shall bear the cost of enforcement actions for stray/ownerless animals. If the required measures are not taken in time, the authority may act and recover costs from the ULB.	
Sec 30, <i>Prevention and Control of Infectious and Contagious Diseases in Animals Act, 2009</i>	Assistance in Disease Control	ULBs must assist Veterinary Officers in disease control by: - Reporting suspected outbreaks. - Implementing preventive measures. -Assisting with enforcement (quarantine, carcass disposal, movement restrictions).	

Rabies Eradication

The National Action Plan for Dog Mediated Rabies Elimination from India by 2030 (NAPRE) is a comprehensive programme aiming to eradicate rabies transmitted by dogs in India. This strategic programme prioritises mass dog vaccination (MDV) campaigns as a cornerstone for achieving herd immunity and ultimately eliminating dog-mediated rabies transmission. NAPRE aims to ensure at least 70% anti-rabies vaccination coverage in the dog population for three consecutive years. This targeted approach will effectively safeguard public health and contribute to a rabies-free India by 2030.



Rabies Eradication

Description	Particulars
Collaboration	ULBs to collaborate with AHD in planning and executing MDV campaigns.
Funding	ULBs may allocate funds to support MDV programmes. This includes funds for vaccines, personnel, logistics, outreach activities, and data collection.
Public Awareness Campaigns	ULBs to conduct public awareness campaigns on dog vaccination and responsible pet ownership.
District Level Steering Committee (DLSC)	ULBs are the members of this committee formed at the district level to oversee the implementation of rabies elimination action plan at district level.



State Municipal Corporation Acts

It's important to note that State Governments have enacted Municipal Acts that encompass provisions related to ULBs responsibilities with respect to animal welfare and management. These Acts typically empower ULBs with responsibilities including public safety measures and nuisance abatement, and authority to make relevant bylaws. The scope of these acts generally covers -

1. pet registration systems,
2. management of slaughterhouses
3. management of municipal markets,
4. construction and maintenance of cattle pounds and pinjrapoles,
5. prevention and control of infectious diseases affecting animals
6. proper disposal of dead animals,
7. taxation of animal premises and animal-drawn vehicles within municipal areas,
8. installation of water troughs for animals
9. waste management and prevention of cruelty to animals.

While specific provisions may vary by state, these fundamental aspects of animal welfare and management are usually commonly addressed across different municipal acts, establishing a framework for local authorities to ensure proper care and management of animals within their jurisdictions.

It is important to note that these State Municipal Corporation Acts may at times overlap or conflict with central legislation. In such cases, the doctrine of repugnancy under Article 254 of the Constitution would apply, wherein the central law would prevail over the state law to the extent of the repugnancy/contradiction.



Glossary of Abbreviations and Terms

Abbreviations

- ABC: Animal Birth Control
- AHD: Animal Husbandry Department
- AWBI: Animal Welfare Board of India
- AWO: Animal Welfare Organisation
- CPCB: Central Pollution Control Board
- DLSC: District Level Steering Committee
- EC: Environmental Clearance
- FSSAI: Food Safety and Standards Authority of India
- Local ABC Monitoring Committee:
- MDV: Mass Dog Vaccination
- NAPRE: National Action Plan for Dog Mediated Rabies Elimination
- NGT: National Green Tribunal
- NOC: No-Objection Certificate
- PCA: Prevention of Cruelty to Animals
- PCC: Pollution Control Committee
- SAWB: State Animal Welfare Board
- SLA: Service Level Agreement
- SMC: Slaughterhouse Monitoring Committee
- SPCA: Society for Prevention of Cruelty to Animals
- SPV: Special Purpose Vehicle
- State ABC Monitoring Committee:
- ULB: Urban Local Body
- UT: Union Territory

Terms

- **Animal Birth Control:** A programme for managing street dog populations through sterilisation
- **Case Property Animals:** Animals seized during cruelty cases and held as case property.
- **Farrier:** A specialist in equine hoof care, including trimming and balancing of horses' hooves and placing shoes on their hooves
- **Phooka/Doom Dev:** Forceful milk extraction from cattle (prohibited practice)
- **Pinjrapole:** Animal shelter, particularly for old and infirm cattle
- **Project Recognition:** Mandatory certification from AWBI for conducting ABC programme

Glossary of Abbreviations and Terms

Terms

- **Seizure:** Seizure is a process of taking temporary possession of the property from the owner/accused.
- **State Animal Welfare Board:** State-level body responsible for animal welfare
- **Zoonotic Disease:** Diseases that can be transmitted from animals to humans

Annexure A

1. Form-I

Application Form for seeking permission of Animal Birth Control Program

Part - I

1.	Organisation Details						
(a)	Name of the Organisation						
(b)	Address of the Organisation with pin code No.						
(c)	Telephone Nos. with STD Code and Mobile No. (Whatsapp No.)						
(d)	E-mail address						
(e)	PAN No. of the Organisation						
(f)	Year of Establishment						
2.	Details of Animal Shelter/ Dispensary						
	S. No.	Address of Shelter/ Dispensary	No. of Sheds	Area of Shed	No. of small animals	No. of Largeanimals	Type (Shelter / Disp.)
	1						
	2						
3.	Details of the Office Bearers/Governing Body/Management Committee						
	Name	Designation	Address	Telephone No. / Mobile No. (whatsapp)	Email address	Aadhar No.	
4.	Registration No. with year under Societies Registration Act/Indian Trust Act, Co-operative Societies Act, etc. (Attach copy of Registration Certificate with renewal, if any, duly attested by Notary Public)						
5.	Details of Registration on NITI Aayog NGO Portal-Dateand Unique ID Number (Attach a photocopy) (Mandatory)						
6.	Memorandum of Association, By-Law/Constitution of Organisation (Please attach copy of MOA with amendments, if any, duly attested by Notary Public)						
7.	Details of Registration under Foreign Contribution Regulation Act- Registration No. and Date (Please attach copy of Registration certificate)						
8.	Details of 80 G exemption under Income Tax Act, if any (Number, Dateand Attachment)						
9.	Details of Source of Income (Grant Received with state Govt., Central Govt., Foreign Agencies and other Source)						
	From State Govt.						
	From Central Govt. (other than AWBI)						
	From Donations						
	From Foreign Agencies						
	From other sources						
	Total						
10(i)	Main Objective of the Organisation						
10(ii)	Activities of the Organisation with Percentage of expenditure incurred during the last three year			Activities		Percentage of expenditure	
				Sheltering of Stray Cattle/largeanimals			
				Sheltering of stray Dogs and other small animals			
				Animal Birth Control			

		Programme	
		Dispensary/Treatment	
		Ambulance services / Mobile Animal Clinic	
		Rescue/ Rehabilitation of animals	
		Awareness / Training for animal welfare	
		Legal Cases booked against cruelty to animals	
10(iii)	Other activities as per aims and objectives		
S.No.	Activities		Percentage of expenditure
1			
2			
11.	Details of Number of Animals Sheltered/Treated/Rescued during the year		
(i)	Number of animals rescued during the year		
(ii)	Number of animals treated by the Organisation in the preceding one year Note : (As verified from animal treatment register maintained by the Organisation)		
	In their in- house dispensary/hospital	Sick and injured animal on the spot	In medical camps
			By Mobile Clinics
			Total
(iii)	General health condition of the animal sheltered (Attach related document)		
(iv)	Animal Verification Certificate by jurisdictional Veterinary Officer (Attach photocopy of certificate)		
12.	Details of Dispensary/Medical facilities available		
	Address of Dispensary/ Medical facility	OT (Available/Not Available)	Medical Equipment
			Details to be attached
13.	Whether Ambulance/Tractor Trolley is available, if yes		
	S.No.	Model of Vehicle	Date of Purchase
	1		
	2		
14.	Whether the Organisation is involved in any litigation? If yes, details thereof including latest position and how it has affected the working of the Organisation		
15.	Details of Staff in the Organisation/Shelter		
Name of the staff	Age	Aadhar No.	Salary
			Education
			Designation
			Type (Full Time/ Part Time)
16.	Number of court cases filed under PCA Act during the last year		
17.	Number of FIR filed under PCA Act during last year		

18.	Periodicity of Management Committee Meetings (Attach copies of Resolution adopted towards Animal Welfare Activities of last one year)				
19.	Copy of the Activity Report / Annual Report of the last three year, if any				
20.	Copy of Annual Audited Accounts including Balance sheet and Income and Expenditure statement, if any				
21.	Details of Bank Account in the name of the Organisation				
	Name of the Bank	Branch Address	IFSC	Account No.	Name of the Account Holder

Part – II

22.	Details of the ANIMAL BIRTH CONTROL Center(s)				
	Name of the Center		Address of the Center		
23.	Proposed total number of animals to be sterilized or targeted and immunized in the current year				
(i)	Male Dogs	Female Dogs		Total	
(ii)	Total expenditure to be incurred for the purpose				
24.	Details of Grant-in-aid/ reimbursement grant received from any other Agency/Govt./Dept., if any for the same purpose				
	S.No.	Amount	Received from	Year	
25.	Details of ANIMAL BIRTH CONTROL Operations carried out in the last five years (year-wise details)				
	S.No.	Male Dogs	Female Dogs	Total	Year
26.	Details of infrastructure/facilities available with the Organisation to implement the proposed scheme				
(a)	Whether you have a Dispensary with operation theatre?			☐ Yes ☐ No	
(b)	No. of auto claves available				
(c)	Whether storage room for medicines and equipment available?			☐ Yes ☐ No	
(d)	Method of catching of dogs				
(e)	Whether you have your own dog catchers, if not, then Name of Agency that will be catching and releasing the dogs				
(f)	No. of Trained Animal handlers				
(g)	Monthly capacity for carrying out ANIMAL BIRTH CONTROL programme				

(h)	No. of Kennels and details of the measurements/facilities	
	No. of Kennels	
	Area	
(i)	Details of operation theatre and other infrastructure	
	(A) Pre-operation preparation area	☐ Available ☐ Not Available
	(B) Air-conditioning in OT	☐ Available ☐ Not Available
	(C) Method of identifying the sterilized dogs (e.g. Ear Notching)	
	(D) Drainage System	☐ Available ☐ Not Available
	(E) Room/Area for cleaning and sterilizing instruments	☐ Available ☐ Not Available
	(F) No. of sets of surgical instruments available	
	(G) No. of basic instruments	
	Cautery Machine	
	O.T. Table	
	Stretchers	
	Autoclave	
	Refrigerator	
27.	Whether entered into MoU with Municipality/Municipal Corporation/AWO? (if Yes, Copy of MoU to be enclosed)	☐ Yes ☐ No
28.	Whether dog population survey conducted in your area during the year If yes, attach report	☐ Yes ☐ No
29.	Details of the other collaborating AWO in this project?	
	S.No.	Name and Address of the AWO
30.	Details of Monitoring Committee	
	S.No.	Name and Address of the committee members
31.	Additional information, if any	

DECLARATION

Isolemnly affirm and declare that the above information and documents provided by me are true and correct to the best of my knowledge and belief and no facts have been concealed in the form.

Signature and Seal (Authorized Signatory)

For and on behalf of the Governing Body of the Organisation

Name:

Designation:

Note:

Documents are in Regional language, translate the same in Hindi or English at the time of submission.

3. Form II

Certificate of Project Recognition

4. Form IV

Renewal of Project Recognition as per Part – II of Form – I

5. Form V

Renewal of Project Recognition Certificate

Annexure B

Part – II

22.	Details of the ANIMAL BIRTH CONTROL Center(s)			
	Name of the Center	Address of the Center		
23.	Proposed total number of animals to be sterilized or targeted and immunized in the current year			
(i)	Male Dogs	Female Dogs	Total	
(ii)	Total expenditure to be incurred for the purpose			
24.	Details of Grant-in-aid/ reimbursement grant received from any other Agency/Govt./Dept., if any for the same purpose			
	S.No.	Amount	Received from	Year
25.	Details of ANIMAL BIRTH CONTROL Operations carried out in the last five years (year-wise details)			
	S.No.	Male Dogs	Female Dogs	Total
26.	Details of infrastructure/facilities available with the Organisation to implement the proposed scheme			
(a)	Whether you have a Dispensary with operation theatre?		☐ Yes ☐ No	
(b)	No. of auto claves available			
(c)	Whether storage room for medicines and equipment available?		☐ Yes ☐ No	
(d)	Method of catching of dogs			
(e)	Whether you have your own dog catchers, if not, then Name of Agency that will be catching and releasing the dogs			
(f)	No. of Trained Animal handlers			
(g)	Monthly capacity for carrying out ANIMAL BIRTH CONTROL programme			

(h)	No. of Kennels and details of the measurements/facilities	
	No. of Kennels	
	Area	
(i)	Details of operation theatre and other infrastructure	
	(A) Pre-operation preparation area	☐ Available ☐ Not Available
	(B) Air-conditioning in OT	☐ Available ☐ Not Available
	(C) Method of identifying the sterilized dogs (e.g. Ear Notching)	
	(D) Drainage System	☐ Available ☐ Not Available
	(E) Room/Area for cleaning and sterilizing instruments	☐ Available ☐ Not Available
	(F) No. of sets of surgical instruments available	
	(G) No. of basic instruments	
	Cautery Machine	
	O.T. Table	
	Stretchers	
	Autoclave	
	Refrigerator	
27.	Whether entered into MoU with Municipality/Municipal Corporation/AWO? (if Yes, Copy of MoU to be enclosed)	☐ Yes ☐ No
28.	Whether dog population survey conducted in your area during the year If yes, attach report	☐ Yes ☐ No
29.	Details of the other collaborating AWO in this project?	
	S.No.	Name and Address of the AWO
30.	Details of Monitoring Committee	
	S.No.	Name and Address of the committee members
31.	Additional information, if any	

DECLARATION

Isolemnly affirm and declare that the above information and documents provided by me are true and correct to the best of my knowledge and belief and no facts have been concealed in the form.

Signature and Seal (Authorized Signatory)

For and on behalf of the Governing Body of the Organisation

Name:

Designation:

Note:

Documents are in Regional language, translate the same in Hindi or English at the time of submission.

3. Form II

Certificate of Project Recognition

4. Form IV

Renewal of Project Recognition as per Part – II of Form – I

5. Form V

Renewal of Project Recognition Certificate

Annexure C

Inventory Performa for Dairy Farms and Gaushalas in the State/UT

Sl. No.	Description	Urban Area	Peri-urban Area	Rural Area
1.	Total no. of dairy farms • Small (upto 25 animals) • Medium (upto 100 animals) • Large (above 100 animals) • Total	• • • •	• • • •	• • • •
2.	Total no. of animals in • Small dairy farms • Medium dairy farms • Large dairy farms • Total	• • • •	• • • •	• • • •
3.	Total amount of bovine dung produced (ton per day) by • Small dairy farms • Medium dairy farms • Large dairy farms • Total	• • • •	• • • •	• • • •
4.	Methods of disposal/utilization of bovine dung and wastewater by dairy farms (to be enclosed)			
5.	Total no. of dairy colonies/clusters (list of such dairy colonies/clusters along with the details of no. of dairies, no. of bovine, method of disposal/utilization of bovine dung & wastewater, etc. to be enclosed)	•	•	•

6.	Total no. of Gaushalas • Small (upto 100 animals) • Medium (upto 1000 animals) • Large (above 1000 animals) • Total	• • • •	• • • •	• • • •
7.	Total no. of animals in • Small Gaushalas • Medium Gaushalas • Large Gaushalas • Total	• • • •	• • • •	• • • •
8.	Total amount of dung produced (ton per day) by • Small Gaushalas • Medium Gaushalas • Large Gaushalas • Total	• • • •	• • • •	• • • •
9.	Methods of disposal/utilization of dung and wastewater by Gaushalas (to be enclosed)			

Note:

Urban area: As per the Census of India 2011, the urban area is defined as follows:

- i. All places with a municipality, corporation, cantonment board or notified town area committee, etc.
- ii. All other places which satisfied the following criteria:
 - a. A minimum population of 5,000;
 - b. At least 75 per cent of the male main working population engaged in non-agricultural pursuits, and
 - c. A density of population of at least 400 persons per sq. km.

Peri-urban area: It is an area or habitation located on the perimeter of the urban area having partial or complete influence of urbanization.

Dairy colonies/cluster: It is defined as the area designated by the government for the purpose of dairy activities.

Annexure D

FARRIER'S LICENCE

License No

1. Name of Licensee
2. Place of residence and full postal address.
3. Place of business.
4. Duration of licence.

From.....To.....

CONDITIONS OF LICENCE

- (1) This licence is valid for two years only from the date of its grant, unless renewed, on application made under rule 7 of the Prevention of Cruelty to Animals (Licensing of Farriers) Rules, 1965, within one month before the date of expiry of the original or earlier licence.
- (2) During the continuance of the licence, the licensee shall be bound to produce for inspection during normal workings hours and at his place of business all the tools and other implements in his possession and kept for the purpose of his business if a demand for the production of the same is made by the licensing authority.
- (3) Then Licensee shall afford all reasonable facilities for the purpose of enabling the licensing authority to inspect the place of business of the licensee and the manner in which he is carrying on the business.

RENEWAL ENDORSEMENT

Date of Renewal	Date of Expiry	Signature of licensing authority	Remarks
1	2	3	4

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- * (Notified in the Gazette of India, Part II, Section 3, Sub-Section (ii) vide Government of India, Ministry of Food & Agriculture No.9-18/62-LD, dated 23rd March 1965).
- * Substituted by the Licensing of Farriers (Amendment) Rules, 1966



ANIMAL WELFARE BOARD OF INDIA

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